

26STCV24539 26STCV24539

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-09-28

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Case Number: 26STCV24539 Hearing Date: September 28, 2026 Dept: 833

Knowledge Research Center Case No. 26STCV24539

Hearing:

September 28, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

Catch

Clinical Research, LLC, et. al. Judge: Joseph Lipner

Order Granting Application for Preliminary

Injunction

Plaintiff

Knowledge Research Center ("Plaintiff") requests a preliminary injunction ordering Defendants Catch Clinical Research, LLC; Indira Mohabir ("Mohabir"); and Stephen Avrons ("Avrons") (collectively, "Defendants") to not (1) access, disclose, sell, license, or exploit any propriety information of Plaintiff; (2) contact or solicit any research study participant of Plaintiff whose identify was obtained from Plaintiff's data; (3) delete, destroy, alter, transfer, or otherwise spoil any of the data from Plaintiff.

Plaintiff

also requests an order asking Defendants to preserve all KRC data and all documents and devices with Plaintiff's data; and within three court days, to identify under oath, all persons and entities to whom Plaintiff's data has been disclosed, transmitted, or made available.

The

Court GRANTS the application for a preliminary injunction. Plaintiff has demonstrated with clarity that it is likely to prevail against Mohabir. While the evidence is not as unequivocal against Catch and Avrons, it is sufficient to demonstrate that Plaintiff has a reasonable probability of success on the merits against them. It is undisputed that Catch and Avrons have Plaintiff's trade secrets and they have no right to have it. Moreover, Avrons has agreed that he received data from Mohabir which she said came from a former employer—just a different one than Plaintiff. This and other facts discussed below demonstrates a reasonable probability of success.

The Court sets an undertaking at \$1,000.00. Plaintiff has already filed this undertaking. Defendants have not demonstrated that they are at risk of suffering harm from this injunction and Defendants have no cognizable right to the data from Plaintiff.

LEGAL STANDARD

The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (*Major v. Miraverde Homeowners Ass'n*. (1992) 7 Cal. App. 4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, including "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (*White v. Davis* (2003) 30 Cal.4th 528, 553-54.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (*Dodge, Warren & Peters Ins. Services, Inc. v. Riley* (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (*IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (*Savage v. Trammell Crow Co.* (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an

inadequate remedy at law. (CCP § 526(a).)

“The granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy.” (Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286; see also Yee v. American National Ins. Co. (2015) 235 Cal.App.4th 453, 457-458 [“a preliminary injunction is not a determination on the merits....”].)

DISCUSSION

A. Summary of Facts

The application is based on Plaintiff’s causes of action for misappropriation of trade secrets, breach of contract, breach of the duty of loyalty, and violations of Penal Code sections 496 and 502.

Plaintiff operates a clinical research center and conducts clinical trials and research studies on behalf of pharmaceutical, biotechnology, and medical device sponsors. (Abousaif Decl., ¶ 2.) In connection with its business, Plaintiff maintains highly confidential information, including the identities, contact information, dates of birth, medical histories, diagnoses, conditions, medications, and clinical information of its research study participants, together with study eligibility, screening, and enrollment information, and confidential study, sponsor, and recruitment information. (Abousaif Decl., ¶ 3.)

Defendant Mohabir was employed by Plaintiff as a Clinical Research Coordinator from June 25, 2026 to July 13, 2026. (Browning Decl., ¶ 2.) Mohabir was entrusted with access to Plaintiff’s confidential research study participant information. (Browning Decl., ¶ 2.) Mohabir was dismissed on July 13, 2026 as a result of repeated time and attendance infractions. (Browning Decl., ¶ 3.)

When joining the firm, Mohabir agreed to Plaintiff’s Business Protection Agreement, which included:

.
a duty of loyalty during employment;

.
a requirement to never use or disclose
Plaintiff's confidential information during or after employment;

.
a requirement to promptly return all files,
records, and lists relating to confidential information upon termination; and

.
a notice that a breach of the non-disclosure
provisions would cause Plaintiff irreparable harm.

(Browning Decl., Exh. A.)

Mohabir returned her
company-issued cell phone on or about July 14, 2026. (Browning Decl., ¶
5.) After Plaintiff inspected the
device, Plaintiff discovered an open link to Mohabir's gmail account, which
showed that Mohabir had forwarded Plaintiff's data to the address stephen@Catchintl.com.
(Browning Decl., ¶¶ 5-6.) Catchintl
is the email domain for Catch Clinical Research, LLC ("Catch"), another research
clinic located in Lynwood, California. (Browning Decl., ¶ 6.) The data
forwarded to Catch Clinical Research, LLC included the names, contact information,
clinical and study-related information, and some specific medical information
of research participants. (Ibid.) Plaintiff never authorized Mohabir to
forward data to anyone. (Abousaif Decl., ¶ 10.)

Defendants contest the argument that Catch is a competitor of Plaintiff.
Defendants note that Catch's facility is too far away from Plaintiff's
facility, so the facilities are not recruiting from the same group of people.
(Avrons Decl., ¶ 11.) Defendants also state that Catch has never and is not
currently recruiting for or conducting any studies related to liver diseases,
which is what Plaintiff is focusing on. (Avrons Decl., ¶ 13.) Defendants
explain that none of their current or former principal investigators have any
experience overseeing liver diseases studies, so Catch is highly unlikely to
contract with sponsors who might be looking to engage a clinical trial manager
such as Catch. (Avrons Decl., ¶ 15.)

The research study participants were unaware that their medical
information has been taken and they have no way to protect themselves.

(Abousaif Decl., ¶ 12.) Plaintiff argues that it will suffer irreparable harm if a preliminary injunction does not issue: the privacy of Plaintiff's research study participants will be violated, the value of Plaintiff's confidential compilations will be destroyed; Plaintiff faces significant regulatory exposure and breach-notification obligations arising from Defendants conduct; and Plaintiff stands to lose research study participants, studies, sponsor relationships, revenue, reputation, and goodwill that took years to build. (Abousaif Decl., ¶ 14.)

The CEO of Catch states that Mohabir has no relationship with Catch and Catch has never employed Mohabir. (Avrons Decl., ¶ ¶ 17-18.) However, the CEO states that Mohabir and he have known each other professionally since 2020 and are friendly as social contacts. (Avrons Decl., ¶ 18.) The CEO states that Mohabir has never spoken about Plaintiff's clinical studies or trials. (Avrons Decl., ¶ 19.) However, a Google search reveals that Mohabir is Director of Clinical Operations for Catch. (Fisher Supplemental Decl., ¶ 3.) According to Plaintiff, Catch has tried to hide the fact that Mohabir is Director of Clinical Operations. (Fisher Supplemental Decl., ¶ 4.)

The CEO admits that Mohabir "around March 2023 and periodically since then. . . consulted with me at no cost . . . " (Avrons Decl., ¶ 19.)

The CEO of Catch states that he asked Mohabir for advice regarding Catch's use of a software platform and how to build a patient database. (Avrons Decl., ¶ 20.) Mohabir explained that she had an Excel spreadsheet with basic patient information that she had compiled while working for a different company. (Avrons Decl., ¶ 20.) Catch's CEO never asked Mohabir to send the spreadsheet to anyone. (Avrons Decl., ¶ 20.) Mohabir eventually sent Catch's CEO a spreadsheet with patient information. (Avrons Decl., ¶ 22.) Other than reviewing the spreadsheets and uploading the information to Claude Pro to consolidate and streamline the information Catch's CEO claims that they did not do anything to the spreadsheets and did not give the information in the spreadsheets to anyone. (Avrons Decl., ¶ 23.)

Since dismissing

Mohabir, Plaintiff has also become aware that Mohabir was convicted of felonies in federal court for (1) conspiracy to commit financial institution fraud and issue credit union obligations without authority; (2) unauthorized issuance of credit union obligations, aiding and abetting and causing an act to be done; and (3) financial institution fraud, aiding and abetting and causing an act to be done. (Browning Decl., ¶ 9.) A federal court has also entered judgment against

Mohabir in a civil case on a claim for fraud. (Browning Decl., ¶¶ 10-11.)

B. Judicial Notice

The Court grants the requests for judicial notice ("RJN").

C. Evidentiary Objections

The Court overrules all of the evidentiary objections.

D. Plaintiffs' Likelihood of Success on the Merits

The application is based on Plaintiff's causes of action for misappropriation of trade secrets, breach of contract, breach of the duty of loyalty, and violations of Penal Code sections 496 and 502.

1.

Misappropriation of Trade Secrets

Under California law, misappropriation of a trade secret consists of only two elements: (1) existence of a trade secret, and (2) improper acquisition, use, or disclosure of that trade secret. (Applied Medical Distribution Corp. v. Jarrells (2024) 100 Cal.App.5th 556, 569-570.) A trade secret is defined as information, including a formula, pattern, compilation, program, device, method, technique, or process, that: (1) derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and (2) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy. (Civil Code § 3426.1, subd. (d).) California courts have repeatedly held that customer and client compilations are protectable trade secrets. (Morlife, Inc. v. Perry (1997) 56 Cal.App.4th 1514, 1521-1522.)

Plaintiff has identified the trade secrets, together with the data they contain: participant identities, contact information, dates of birth, medical histories, diagnoses, conditions, medications, clinical information, and study eligibility, screening, and enrollment data. (Browning Dec., ¶¶5–6 & Exh.

E; Abousaif Dec., ¶ 3.) The Court agrees with Plaintiff that study-participant identities and medical information are even more sensitive than an ordinary customer list because they identify persons qualified for an interested in clinical studies and cannot be replicated from public studies. (Courtesy Temporary Service, Inc. v. Camacho (1990) 222 Cal.App.3d 1278, 1287-1288.) Therefore, the Court classifies the study-participant identities and medical information as trade secrets.

There is clear evidence of misappropriation of a trade secret; Mohabir transmitted information to Catch Clinical Research, LLC without preauthorization. (Browning Decl., ¶¶ 5-6; Abousaif Decl., ¶ 10.) There is also evidence that Plaintiff took efforts to maintain the privacy of the lists. (Abousaif Decl., ¶¶ 7-12.)

While Catch and Avrons acquired the trade secrets, they deny that there is a showing that they acquired the information improperly. The Court disagrees with this argument, and concludes that Plaintiff has demonstrated reasonable probability of prevailing on this issue at trial. The CEO of Catch states that, when he received the compilation from Mohabir, he had no idea what they were or whether they included confidential information. (Avrons Decl., ¶ 22.) However, the CEO admits that he knew that this was information from another third party company, albeit he allegedly did not know it came from Plaintiff. (Avrons Decl., ¶ 20.) The information was clinical data from a clinical trial and included participant names and medical information. A claim by Catch and Avron that they did not know this was proprietary information of another is unconvincing.

Moreover, there is the matter of Mohabir's work with Defendants. Defendants state that she was not employed by Catch, but her name appears in the information on Catch's website as "Director of Clinical Operations." (Reply Fischer Decl., ¶¶ 3-4 & Exhs. 2-3.) This raises credibility questions on its own, lending credence to a closer connection between Mohabir, on the one hand, and Catch and Avrons, on the other hand, than Defendants have admitted. If she was an employee of Catch, her conduct is directly attributable to Catch.

Whether or not she was an employee, Defendants admit that she "consulted" for Avrons about Catch. (Avrons Decl., ¶¶ 19-20.) It was during her consultation for Avrons and Catch that she violated her contractual obligations to Plaintiff to keep the information confidential and instead provided that information to Catch. (Avrons Decl., ¶ 20.) These are not circumstances in

which it appears likely that Catch will be able to claim that it acquired the trade secrets without the requisite knowledge.

All these facts lead the Court to conclude that Plaintiff has a reasonable probability of prevailing on the claim for misappropriation of trade secrets against Catch and Avrons. This conclusion is especially compelling in the context of this motion. Misuse of this data will irreparably harm Plaintiff, as discussed below. As noted in the legal discussion, the probability of success on the merits and irreparable harm are considered on a sliding scale. Here—especially where Defendants have no right whatsoever in this data—the balance tips decisively in favor of Plaintiff.

2.

Breach of Contract

To establish a claim for breach of contract, a plaintiff must prove: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1367.)

The evidence presented indicates Mohabir signed a Business Protection Agreement, which included a duty to not use Plaintiff's confidential information during employment, for Mohabir's own benefit or that of any third party. (Abousaif Decl., ¶ 7.) Mohabir is accused of doing just that: giving confidential information another research group. (Browning Decl., ¶¶ 6-8.) Plaintiff has characterized the damages that will be incurred as a result of Mohabir's breach of the contract. (Abousaif Decl., ¶¶ 12-14.)

Mohabir has not provided any competing evidence.

Plaintiff does not identify any contract that Catch or Avrons are alleged to have violated. Instead, Plaintiff argues that Catch and Avrons are liable for aiding and abetting a breach of contract. Plaintiff does not cite any law that allows for liability for "aiding and abetting a breach of contract." To the extent Plaintiff is arguing that Catch and Avrons are liable for aiding and abetting a breach of the duty of loyalty, that argument fails, as well. Actual knowledge is the crucial element of a claim for aiding and

abetting a tortfeasor. (Casey v. U.S. Bank Nat. Assn. (2005) 127 Cal.App.4th 1138, 1145.) As the Court has described, the evidence does not indicate that Avrons and Catch had actual knowledge that Mohabir had breached a contract.

Accordingly, the Court agrees Plaintiff has demonstrated it is likely to prevail against Mohabir (but not Catch and Avrons) on a claim for breach of contract.

3.

Violation of Penal Code Section 502

Mohabir's transfer of data from Plaintiff's computer systems also violates Penal Code section 502, subd. (c), which affords the owner of the data compensatory damages, injunctive relief, and attorneys' fees. (Penal Code, § 502, subd. (e).) Plaintiff fails to identify any part of the statute for which Catch and Avrons could be held liable. There is no evidence that Catch and Avrons knowingly accessed Plaintiff's computer systems.

Accordingly, the Court agrees Plaintiff has demonstrated it is likely to prevail on a claim against Mohabir (but not Catch and Avrons) for violation of Penal Code Section 502.

4.

Violation of Penal Code Section 496

Civil

liability under Penal Code section 496, subd. (a) requires receipt, concealment, sale, or withholding of property known to be stolen or obtained in a manner constituting theft. Treble damages and attorneys' fees are available for a violation of Penal Code Section 496, subd. (a).

(Penal Code, § 496, subd. (c).) Plaintiff has made this showing as to Mohabir, but has not yet made this showing (i.e., knowledge of "theft") by Catch and Avrons. Accordingly, Plaintiff has demonstrated it is likely to prevail on a claim against Mohabir but not Catch and Avrons for violation of Penal Code Section 496.

E. Balance of Harms

For the second factor, the court must consider “the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued.” (Smith v. Adventist Health System/West (2010)

182 Cal.App.4th 729, 749.) “Irreparable

harm” generally means that the defendant’s act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award.

(See Brownfield v. Daniel Freeman

Marina Hospital (1989) 208 Cal.App.3d 405, 410.) The showing of harm is even more demanding when a Plaintiff seeks injunctive relief against a public entity because “[t]here is a general rule against enjoining public officers or agencies from performing their duties.” (Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd. (1994) 23 Cal.App.4th 1459, 1471.)

Plaintiff has identified significant irreparable harm: the privacy of Plaintiff’s research study participants has been violated, the value of Plaintiff’s confidential compilations has been destroyed; Plaintiff faces significant regulatory exposure and breach-notification obligations arising from Defendants conduct; and Plaintiff stands to lose research study participants, studies, sponsor relationships, revenue, reputation, and goodwill that took years to build. (Abousaif Decl., ¶ 14.) There is also substantial risk that the emails and accounts evidencing Defendants’ conduct will be deleted. (Abousaif Decl., ¶ 14.)

Based on the record before the Court, it appears Defendants have no interest in Plaintiff’s trade secrets, and irreparable harm has already occurred: the privacy of Plaintiff’s research study participants has been violated, the Plaintiff faces significant regulatory exposure and breach-notification obligations arising from Mohabir’s conduct.

On those grounds, the balance of harms decidedly favor a preliminary injunction.

F. Bond

The undertaking on a preliminary injunction is designed to

ensure that the Plaintiff “will pay to the party enjoined any damages . . . the party may sustain by reason of the injunction, if the court finally decides that the applicant was not entitled to the injunction.” (Civ. Proc. Code § 529, subd. (a).) Defendant have not demonstrated any damages which they may sustain in connection with the granting of the injunction. It is undisputed that Defendants have no right to the data from Plaintiff.

The only contrary argument Defendants make for a higher bond is anticipated attorneys fees in this action. This is not damages they may sustain “by reason of the injunction” but rather attorneys fees that they will incur to defend the action.

Accordingly, the \$1,000 already posted by Plaintiff is sufficient.

CONCLUSION

The Court GRANTS the application for a preliminary injunction as follows:

Pending the trial of this matter, Defendants Mohabir, Catch, and Avrons and anyone acting in concert with them are hereby ENJOINED AND RESTRAINED from:

1.

Accessing, using, disclosing, transmitting, copying, selling, licensing, or otherwise exploiting the information transmitted from the personal Gmail account of Mohabir to Avron and/or Catch (the “Plaintiff Data”);

2.

Contacting or soliciting, directly or indirectly, any research study participant of Plaintiff whose identify was obtained or derived from the Plaintiff Data; and

3.

Deleting, destroying, altering, secreting, transferring, allowing to be destroyed or deleted, or otherwise spoliating any of the Plaintiff Data, or any documents or communications reflecting the acquisition, transmission, use, or dissemination of the Plaintiff Data.

4.

This order does not prohibit

Defendants from contacting, soliciting or recruiting any person whose identity
Defendants obtained from a source independent of the plaintiff Data. Nor does
this order prohibit access to the Plaintiff Data by Defendants' counsel or
retained experts subject to a protective order.

Plaintiff has already posted a bond of \$1,000, which is
sufficient.

IT IS SO ORDERED.

Dated: September 28,
2026

Joseph
Lipner

Superior
Court Judge